

THE INDIAN CONTRACT ACT, 1872

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PRELIMINARY

Section 2(h). Definition of Contract

An agreement enforceable by law is a contract.

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Section 2(d). Definition of Consideration

When, at the desire of the promisor, the promisee or any other person has done or abstained from doing, or does or abstains from doing, or promises to do or to abstain from doing, something, such act or abstinence or promise is called a consideration for the promise.

CHAPTER II - OF CONTRACTS, VOIDABLE CONTRACTS AND VOID AGREEMENTS

Section 10. What Agreements Are Contracts

All agreements are contracts if they are made by the free consent of parties competent to contract, for a lawful consideration and with a lawful object, and are not hereby expressly declared to be void.

CHAPTER II - VOID AGREEMENTS

Section 27. Agreement in Restraint of Trade Void

Every agreement by which any one is restrained from exercising a lawful profession, trade or business of any kind, is to that extent void. Exception 1: One who sells the goodwill of a business may agree with the buyer to refrain from carrying on a similar business.

CHAPTER VI - OF THE CONSEQUENCES OF BREACH OF CONTRACT

Section 73. Compensation for Loss or Damage Caused by Breach of Contract

When a contract has been broken, the party who suffers by such breach is entitled to receive, from the party who has broken the contract, compensation for any loss or damage caused to him thereby, which naturally arose in the usual course of things from such breach, or which the parties knew, when they made the contract, to be likely to result from the breach of it.